

Suresh Kumar vs State Of Kerala on 12 March, 2008

Author: R.Basant

Bench: R.Basant

IN THE HIGH COURT OF KERALA AT ERNAKULAM

WP(C) No. 8315 of 2008(M)

1. SURESH KUMAR, S/O.JANARDHANAN,
... Petitioner
2. JAMUNA T.P., HOUSE NO.106[1] ANUGRAHA,

Vs

1. STATE OF KERALA, REPRESENTED BY HOME
... Respondent
2. THE CITY COMMISSIONER OF POLICE,
3. THE STATION HOUSE OFFICER,
4. SUDHAKARAN, S/O. JANARDHANAN,

For Petitioner :SRI.P.A.AHAMMED

For Respondent : No Appearance

The Hon'ble MR. Justice R.BASANT

Dated :12/03/2008

O R D E R

R.BASANT, J

W.P(C).No.8315 of 2008

Dated this the 12th day of March, 2008

JUDGMENT

Petitioner is the defacto complainant in a crime registered alleging commission of offences punishable, inter alia, under Sections 324 and 294 (b) I.P.C. The alleged incident took place on 15.01.08. F.I.R was registered on 17.01.08 as Crime 58 of 2008 of Medical College Police Station, Trivandrum. The petitioner has now rushed to this Court with the grievance that a proper investigation is not being conducted into the said crime by the Investigating Officer. It is prayed that appropriate directions may be issued to ensure that a proper, efficient and meaningful investigation is conducted.

2. After the decision in *Sakiri Vasu v. State of U.P* [2008 AIR SCW 309] it is for the petitioner to move the learned Magistrate if he has a grievance about the inadequacy, impropriety or the insufficiency of the investigation conducted. The petitioner has admittedly not moved the learned Magistrate or sought any directions from the learned Magistrate under Section 156(3) Cr.P.C. The decision in *Sakiri Vasu* (supra) is authority for the proposition that this Court should not readily encourage the aggrieved persons coming to this Court with petitions under Section 482 Cr.P.C and Article 226 of the Constitution of India. Before and without exhausting the efficacious alternative remedy available to the petitioner under Section 156(3) Cr.P.C to seek directions from the learned Magistrate. This petition filed under Article 226 of the Constitution of India cannot hence be entertained.

3. This Writ Petition is accordingly dismissed. I may however hasten to observe that the dismissal of this petition will not in any way fetter the rights of the petitioner to approach the learned Magistrate to seek appropriate directions under Section 156(3) Cr.P.C. The learned Magistrate must consider the same and pass appropriate orders in the light of *Sakiri Vasu* referred above.

(R.BASANT, JUDGE) rtr/-